

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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MARCUS BONNER,

Plaintiff,

-against-

CITY OF NEW YORK, STEVEN MOYLAN, Individually,
VITALIY ZELIKOV, Individually, and MICHAEL VITALE,
Individually,

Defendants.
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**AMENDED
COMPLAINT**

16 CV 0368
(AMD) (ST)

Jury Trial Demanded

Plaintiff MARCUS BONNER, by his attorneys, Brett H. Klein, Esq., PLLC, complaining
of the defendants, respectfully alleges as follows:

Preliminary Statement

1. Plaintiff brings this action for compensatory damages, punitive damages and attorneys' fees pursuant to 42 U.S.C. §§1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the United States. Plaintiff also asserts supplemental state law claims.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution.

3. Jurisdiction is found upon 28 U.S.C. §§1331, 1343 and 1367.

VENUE

4. Venue is properly laid in the Eastern District of New York under 28 U.S.C. § 1391(b), in that this is the District in which the claim arose.

JURY DEMAND

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38 (b).

PARTIES

6. Plaintiff MARCUS BONNER is a thirty-year-old African American resident of the State of New York.

7. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

8. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as “NYPD”), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

9. That at all times hereinafter mentioned, the individually named defendants, STEVEN MOYLAN, VITALIY ZELIKOV, and MICHAEL VITALE were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

10. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

11. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

FACTS

12. On May 1, 2015 at approximately 2:00 p.m., on the public street and sidewalk on Montauk Ave., near the corner of Hegeman Avenue, across the street from 1019 Hegeman Avenue, Brooklyn, New York, defendant NYPD officers STEVEN MOYLAN and MICHAEL VITALE, and Lieutenant VITALIY ZELIKOV, who held a supervisory role, without justification, and unnecessarily, unreasonably and otherwise unlawfully assaulted and battered plaintiff.

13. During the assault, defendant ZELIKOV applied a Taser conducted energy device to plaintiff's back, and struck plaintiff with a metal baton.

14. Plaintiff was then thrown to the ground.

15. After plaintiff was thrown to the ground, defendant ZELIKOV deployed the Taser to plaintiff's back in touch stun mode for, at a minimum, two more cycles, and plaintiff was further offensively and otherwise needlessly touched and/or punched by MOYLAN and ZELIKOV with their hands and bodies, and defendant ZELIKOV pressed plaintiff's head into the ground with his knee, causing injury to plaintiff's face and mouth.

16. Plaintiff was then lifted up, handcuffed, and while he was being placed into a police van, needlessly struck in the leg by defendant MICHAEL VITALE.

17. Plaintiff was transported to the NYPD's 75th precinct by officers including defendant VITALE, and then to Brookdale University Hospital and Medical Center, where plaintiff received emergency medical treatment for the injuries inflicted via the defendants' use of unnecessary force.

18. Plaintiff was returned to the 75th precinct, and then taken to Central Booking in Brooklyn, where he was arraigned on charges sworn to by defendant MOYLAN, based on false

information he conveyed to the Kings County District Attorney's Office resulting in unfounded criminal charges of resisting arrest being filed under Kings County Criminal Court Docket No. 2015KN027505.

19. Defendant MOYLAN deprived plaintiff of his right to a fair trial by conveying and swearing to said false allegations. Specifically, MOYLAN falsely alleged that BONNER resisted a lawful arrest by swinging his arms.

20. Plaintiff was held in custody until May 2, 2015, when he was arraigned in Kings County Criminal Court and granted an adjournment in contemplation of dismissal. All charges have since been dismissed and sealed.

21. Defendant MOYLAN and ZELIKOV both directly participated in using force against plaintiff and failed to intervene in each other's illegal use of force despite a meaningful opportunity to do so.

22. Defendant ZELIKOV further supervised and approved of, oversaw, and otherwise participated in the aforementioned acts of misconduct.

23. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

24. All of the aforementioned acts deprived plaintiff MARCUS BONNER of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

25. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

26. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the CITY OF NEW YORK and the New York City Police Department, all under the supervision of ranking officers of said department.

27. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

28. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising of its employees, and due to a custom, policy, and/or practice of subjecting individuals to excessive force, and improperly training and supervising NYPD officers in de-escalation techniques and in the deployment of Tasers when lesser and/or otherwise more reasonable means of force are available, and engaging in a practice of falsification and manufacturing evidence in an attempt to justify their use of excessive force.

29. The existence of the aforesaid unconstitutional customs and policies, and lack of training and supervision, may be inferred from repeated occurrences of similar wrongful conduct by the NYPD as documented in civil rights actions filed in the United States District Courts in the Eastern and Southern Districts of New York, as well as in New York State courts, as well as notices of claims filed with the CITY OF NEW YORK, complaints filed with the NYPD's Internal Affairs Bureau and the CITY OF NEW YORK'S Civilian Complaint Review Board, media coverage, and investigations conducted by the NYPD.

30. For example, with respect to the custom and practice of using excessive force, and the pervasive lack of adequate training in that regard, and in particular with regard to de-

escalation techniques, the New York City Department of Investigation Office of the Inspector General for the NYPD conducted an investigation into uses of force by the NYPD, and issued a report on October 1, 2015.¹ Said report acknowledged that between the years of 2010 and 2014, the Civilian Complaint Review Board substantiated 179 force cases. The report further affirmed the lack of adequate training, particularly with respect to de-escalation techniques, and further found that the NYPD's use-of-force policy which was in place at the time was "vague and imprecise, providing little guidance to individual officers on what actions constitute force." The report further found that the NYPD frequently failed to impose discipline when provided with evidence of excessive force.

31. Furthermore, as to falsification by NYPD officers, in another civil rights action filed in this District involving false allegations by NYPD officers, Senior Judge Jack B. Weinstein pronounced:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged. *Colon v. City of New York, et. al.*, 2009 WL 4263362, *2 (E.D.N.Y. 2009).

32. Moreover, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

¹ Said report is available on the City of New York's website at http://www1.nyc.gov/assets/oignypd/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf

33. For instance, the CITY OF NEW YORK is aware that defendant ZELIKOV has previously been sued for using excessive use of force, and in particular for improperly employing his Taser and for falsification, in the matters *Miles v. City of New York, et al.*, 13 CV 501 (JBW) (VVP); *Rollins v. City of New York, et al.*, 12 CV 3324 (JBW) (VVP); and *Pemberton v. City of New York, et al.*, 12 CV 5609 (KAM) (VVP).

34. Despite the above described notice, defendant CITY OF NEW YORK has failed to take correction action. This failure caused the officers in the present case to violate plaintiff's civil rights.

35. As a result of the foregoing, plaintiff MARCUS BONNER sustained, *inter alia*, physical injuries, emotional distress, and deprivation of his constitutional rights.

Federal Claims

AS AND FOR A FIRST CAUSE OF ACTION

(Excessive Force under 42 U.S.C. § 1983 against the Individually Named Defendants)

36. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "35" with the same force and effect as if fully set forth herein.

37. The level of force employed by defendants was excessive, objectively unreasonable and otherwise in violation of plaintiff MARCUS BONNER'S constitutional rights.

38. As a result of the aforementioned conduct of defendants, plaintiff MARCUS BONNER was subjected to excessive force and sustained serious physical injuries and emotional distress.

39. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable

attorneys' fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Violation of Right to Fair Trial under 42 U.S.C. § 1983 against Defendant Moylan)

40. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "39" with the same force and effect as if fully set forth herein.

41. Defendant STEVEN MOYLAN created false evidence against plaintiff MARCUS BONNER.

42. Defendant STEVEN MOYLAN utilized this false evidence against plaintiff MARCUS BONNER in legal proceedings.

43. As a result of defendant STEVEN MOYLAN'S creation and use of false evidence, plaintiff MARCUS BONNER suffered a violation of his constitutional rights to a fair trial, as guaranteed by the United States Constitution.

44. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983 against Defendants MOYLAN and ZELIKOV)

45. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "44" with the same force and effect as if fully set forth herein.

46. Defendants had an affirmative duty to intervene on behalf of plaintiff MARCUS BONNER, whose constitutional rights were being violated in their presence.

47. The defendants failed to intervene to prevent the unlawful conduct described herein.

48. As a result of the foregoing, plaintiff MARCUS BONNER was subjected to excessive force, he was denied his right to a fair trial, and he was put in fear of his safety.

49. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983 against Defendant ZELIKOV)

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "49" with the same force and effect as if fully set forth herein.

51. The supervisory defendant, VITALIY ZELIKOV, personally caused plaintiff's constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

52. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983 against Defendant City of New York)

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

55. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York Police Department included, but were not limited to, using excessive force against individuals – including improperly training and supervising NYPD officers in de-escalation techniques and in the deployment of Tasers when lesser and/or otherwise more reasonable means of force are available – as well as a policy of then covering up said acts by manufacturing evidence and otherwise engaging in falsification, thereby depriving individuals of their right to a fair trial. The City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff MARCUS BONNER’S rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

56. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiff MARCUS BONNER.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff MARCUS BONNER as alleged herein.

58. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff MARCUS BONNER as alleged herein.

59. As a result of the foregoing customs, policies, usages, practices, procedures and

rules of the City of New York and the New York City Police Department, plaintiff MARCUS BONNER was unlawfully seized, detained, incarcerated, searched, prosecuted, and subjected to physical abuse.

60. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff MARCUS BONNER'S constitutional rights.

61. All of the foregoing acts by defendants deprived plaintiff MARCUS BONNER of federally protected rights, including, but not limited to, the right:

- A. To be free from excessive force;
- B. To receive a fair trial; and
- C. To be free from the failure to intervene.

62. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

Supplemental State Law Claims

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "62" with the same force and effect as if fully set forth herein.

64. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

65. The CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

66. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

67. Plaintiff has complied with all conditions precedent to maintaining the instant action.

68. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

AS AND FOR A SIXTH CAUSE OF ACTION
(Assault under the laws of the State of New York against Defendants

69. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “68” with the same force and effect as if fully set forth herein.

70. As a result of the foregoing, plaintiff MARCUS BONNER was placed in apprehension of imminent harmful and offensive bodily contact.

71. As a result of defendant’s conduct, plaintiff MARCUS BONNER has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

72. The individually named defendants assaulted plaintiff. Defendant City, as employer of the each of the individually named defendant officers, is responsible for said officers’ wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Battery under the laws of the State of New York against Defendants)

74. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “73” with the same force and effect as if fully set forth herein.

75. Defendants made offensive contact with plaintiff MARCUS BONNER without privilege or consent.

76. As a result of defendants’ conduct, plaintiff MARCUS BONNER has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

77. The individually named defendants battered plaintiffs. Defendant City, as employer of the each of the individually named defendant officers, is responsible for said officers’ wrongdoing under the doctrine of *respondeat superior*.

78. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York against Defendant City of New York)

79. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered “1” through “78” with the same force and effect as if fully set forth herein.

80. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who assaulted and battered and manufactured evidence against plaintiff MARCUS BONNER.

81. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

82. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York against Defendant City of New York)

83. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "82" with the same force and effect as if fully set forth herein.

84. Upon information and belief, the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who assaulted and battered plaintiff, maliciously issued criminal process to plaintiff, and who deprived plaintiff of his right to a fair trial.

85. As a result of the foregoing, plaintiff MARCUS BONNER is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

WHEREFORE, plaintiff MARCUS BONNER demands judgment and prays for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: Brooklyn, New York
November 16, 2016

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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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MARCUS BONNER,

Plaintiff,

-against-

16 CV 0368
(AMD) (ST)

CITY OF NEW YORK, STEVEN MOYLAN, Individually,
VITALIY ZELIKOV, Individually, and MICHAEL VITALE,
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AMENDED COMPLAINT

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